REGISTER notice of intention to amend § 130.77 of this part (11 F. R. 14697). Interested persons were thereby given opportunity to participate in preparing the amendment by submitting data or arguments within 30 days from date of publication of the notice. No communications, written or oral, having been received within the provided period, the said section is hereby amended and promulgated as follows:

§ 130.77 *Basic water and other charges.* Pursuant to the provisions of the acts of June 21, 1906 (34 Stat. 375) and March 7, 1928 (45 Stat. 210, 25 U. S. C. 387), the reimbursable costs expended in the operation and maintenance of the Uintah Indian irrigation project, Utah, are apportioned on a per acre basis against the irrigable lands of all units of the project and for the calendar year 1947, and each succeeding year until further order, there shall be collected from each acre of irrigable land to which water can be delivered from the constructed works, a uniform basic charge of $1.35 per acre per annum, where not otherwise established by contract.

In addition to the foregoing charge, there shall be collected annually a charge of $3.00 on the lands covered by each separate bill. No bill shall be rendered for less than $4.00. (34 Stat. 375, 45 Stat. 210; 25 U.S.C. 387)

WILLIAM ZIMMERMAN, Jr.,
Assistant Commissioner.

[F. R. Doc. 47-1375; Filed, Feb. 12, 1947; 8:50 a. m.]

TITLE 36—PARKS AND FORESTS

Chapter II—Forest Service, Department of Agriculture

PART 201—NATIONAL FORESTS

UMATILLA, WHITMAN, AND WALLOWA NATIONAL FORESTS, OREGON

CROSS REFERENCE: For orders affecting the tabulation contained in § 201.1, see Public Land Orders 346 and 347 under Title 43, *infra*, transferring certain lands from the Umatilla National Forest to the Whitman and Wallowa National Forests, and from the Whitman National Forest to the Umatilla National Forest, Oregon.

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 343]

ARIZONA

REVOKING EXECUTIVE ORDER 7678 OF JULY 27, 1937, ESTABLISHING APACHE MIGRATORY WATERFOWL REFUGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Executive Order No. 7678, of July 27, 1937, reserving the following-described lands in Arizona as the Apache Migratory Waterfowl Refuge, the designation of which was changed to the Apache National Wildlife Refuge by Proclamation No. 2416 of July 25, 1940, is hereby revoked:

GILA AND SALT RIVER MERIDIAN

T. 6 N., R. 27 E.,
Sec. 13, E½NE¼ and NE¼SE¼.
T. 6 N., R. 28 E.,
Sec. 17, W½NW¼ and SW¼;
Sec. 18, lots 1, 2, 3, NE¼, E½W½, and SE¼;
Sec. 19, E½E½;
Sec. 20, W½;
Sec. 29, W½NE¼, W½, and W½SE¼;
Sec. 30, NE¼NE¼, S½NE¼, and SE¼;
Sec. 31, NE¼;
Sec. 32, N½.

The areas described aggregate approximately 2,680 acres.

This order shall not otherwise become effective to change the status of the lands, which are within the Apache National Forest, until 10:00 a. m. of the sixty-third day from the date on which it is signed, whereupon the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to such application, petition, location, or selection as may be authorized by the public-land laws in accordance with the provisions of 43 CFR 295.8 (Cir. 324, May 22, 1914, 43 L. D. 254), to the extent that these regulations are applicable.

WARNER W. GARDNER,
Assistant Secretary of the Interior.

JANUARY 29, 1947.

[F. R. Doc. 47-1347; Filed, Feb. 12, 1947; 8:48 a. m.]

[Public Land Order 170]

VIRGIN ISLANDS

RESERVING LAND FOR USE OF WAR DEPARTMENT

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Jurisdiction over the following-described land owned by the United States on the Island of Saint Croix, Virgin Islands, is hereby transferred from the Department of the Interior to the War Department and the land is reserved for military purposes:

Beginning at a point designated as Corner 1, being the Southeast corner of the Federal Reservation entitled "Benedict Field", and situated on the Caribbean Shore Line, from which United States Coast and Geodetic Survey Station Manning (latitude 17°42' 30.266" N., longitude 64°47'37.874" W.) bears approximately North 26° West 4,040 feet distant;

Thence by magnetic bearings,
N. 16°48' W., 1,372.0 feet to Corner 2;
N. 81°57' E., 553.2 feet to Corner 3;
N. 15°02' W., 2,442.1 feet to Corner 6;
N. 23°09' W., 341.0 feet to Corner 7;
N. 39°44' W., 234.0 feet to Corner 8;
N. 52°41' W., 865.8 feet to Corner 9;
N. 31°17'40" E., 3,457.59 feet to Corner 1-E;
N. 72°05' E., 505.58 feet to Corner 2-E;
S. 17°24'40" E., 7,809.16 feet to Corner 11-E, situated on the shore line of the Caribbean Sea;

Thence along the shore line of the Caribbean Sea in a westerly direction, along the southerly border of the parcel to Corner 1, the point of beginning.

The tract as shown on Map A4-2.45 of Benedict Field Addition, Tract No. 3, on file in the Office of the District Engineer, Corps of Engineers, United States Army, contains 427.084 acres.

This order is subject to the condition that The Virgin Islands Company may continue to use the cattle pens, dipping vats, and other facilities located on the above-described land, provided the Commanding Office of Benedict Field is notified in advance of such use in order that proper guard may be posted.

The jurisdiction granted by this order shall cease at the expiration of the six months' period following the termination of the unlimited national emergency declared by Proclamation No. 2487 of May 27, 1941 (55 Stat. 1647). Thereupon, the jurisdiction over the land shall be vested in the Department of the Interior.

This order is confidential and shall not be filed in the Division of the Federal Register, or be published in the FEDERAL REGISTER, or be given other publicity, until publication thereof has been expressly authorized by or at the direction of the Secretary of War.[1]

ABE FORTAS,
Acting Secretary of the Interior.

SEPTEMBER 24, 1943.

[F. R. Doc. 47-1352; Filed, Feb. 12, 1947; 8:48 a. m.]

[Public Land Order 344]

NEW MEXICO

REVOKING PUBLIC LAND ORDER 108 OF MARCH 31, 1943, WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT AS A BOMBING RANGE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 108 of March 31, 1943, withdrawing the public lands in the hereinafter-described areas for the use of the War Department as a bombing range, is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 108 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on April 2, 1947.

At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become

[1] Confidential status released by letter dated January 13, 1947 of the War Department.

subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from April 2, 1947, to July 2, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from March 13, 1947, to April 2, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on April 2, 1947, shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on July 2, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous nonpreference right filings.* Applications by the general public may be presented during the 20-day period from June 12, 1947, to July 2, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on July 2, 1947, shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Santa Fe, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that Title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that Title.

Inquiries concerning these lands shall be addressed to the District Land Office, Santa Fe, New Mexico.

The lands affected by this order are described as follows:

The public lands in the following-described areas:

NEW MEXICO PRINCIPAL MERIDIAN

T. 7 N., R. 11 W.,
Secs. 14, 15, 16, 21, 22, 23, 26, 27, and 28.

The areas described, including both public and non-public lands, aggregate 5,760 acres.

The public lands are hilly to mountainous desert lands.

WARNER W. GARDNER,
Assistant Secretary of the Interior.

JANUARY 29, 1947.

[F. R. Doc. 47–1348; Filed, Feb. 12, 1947; 8:48 a. m.]

[Public Land Order 345]

NEW MEXICO

REVOKING PUBLIC LAND ORDER NO. 124 OF MAY 19, 1943 WITHDRAWING PUBLIC LANDS FOR USE OF WAR DEPARTMENT AS RADIO RANGE SITE

By virtue of the authority vested in the President and pursuant to Executive Order No. 9337 of April 24, 1943, it is ordered as follows:

Public Land Order No. 124 of May 19, 1943, withdrawing the hereinafter-described lands for the use of the War Department as a radio range site, is hereby revoked.

The jurisdiction over and use of such lands granted to the War Department by Public Land Order No. 124 shall cease upon the date of the signing of this order. Thereupon, the jurisdiction over and administration of such lands shall be vested in the Department of the Interior and any other Department or agency of the Federal Government according to their respective interests then of record.

This order shall not otherwise become effective to change the status of such lands until 10:00 a. m. on April 2, 1947. At that time the lands shall, subject to valid existing rights and the provisions of existing withdrawals, become subject to application, petition, location, or selection as follows:

(a) *Ninety-day period for preference-right filings.* For a period of 90 days from April 2, 1947, to July 2, 1947, inclusive, the public lands affected by this order shall be subject to (1) application under the homestead or the desert land laws, or the small tract act of June 1, 1938 (52 Stat. 609, 43 U. S. C. 682a), as amended, by qualified veterans of World War II, for whose service recognition is granted by the act of September 27, 1944 (58 Stat. 747, 43 U. S. C. 279–283), subject to the requirements of applicable law, and (2) application under any applicable public-land law, based on prior existing valid settlement rights and preference rights conferred by existing laws or equitable claims subject to allowance and confirmation. Applications by such veterans shall be subject to claims of the classes described in subdivision (2).

(b) *Twenty-day advance period for simultaneous preference-right filings.* For a period of 20 days from March 13, 1947 to April 2, 1947, inclusive, such veterans and persons claiming preference rights superior to those of such veterans, may present their applications, and all such applications, together with those presented at 10:00 a. m. on April 2, 1947 shall be treated as simultaneously filed.

(c) *Date for non-preference right filings authorized by the public-land laws.* Commencing at 10:00 a. m. on July 2, 1947, any of the lands remaining unappropriated shall become subject to such application, petition, location, or selection by the public generally as may be authorized by the public-land laws.

(d) *Twenty-day advance period for simultaneous non-preference right filings.* Applications by the general public may be presented during the 20-day period from June 12, 1947, to July 2, 1947, inclusive, and all such applications, together with those presented at 10:00 a. m. on July 2, 1947 shall be treated as simultaneously filed.

Veterans shall accompany their applications with certified copies of their certificates of discharge, or other satisfactory evidence of their military or naval service. Persons asserting preference rights, through settlement or otherwise, and those having equitable claims, shall accompany their applications by duly corroborated affidavits in support thereof, setting forth in detail all facts relevant to their claims.

Applications for these lands, which shall be filed in the District Land Office, Las Cruces, New Mexico, shall be acted upon in accordance with the regulations contained in § 295.8 of Title 43 of the Code of Federal Regulations (Circular No. 324, May 22, 1914, 43 L. D. 254), and Part 296 of that Title, to the extent that such regulations are applicable. Applications under the homestead laws shall be governed by the regulations contained in Parts 166 to 170, inclusive, of Title 43 of the Code of Federal Regulations and applications under the desert land laws and the small tract act of June 1, 1938, shall be governed by the regulations contained in Parts 232 and 257, respectively, of that Title.

Inquiries concerning these lands shall be addressed to the District Land Office, Las Cruces, New Mexico.

The lands affected by this order are described as follows:

NEW MEXICO PRINCIPAL MERIDIAN

T. 17 S., R. 8 E.,
Sec. 31, S½SE¼NE¼ and N½NE¼SE¼.

The area described aggregates 40 acres.

The lands are in Otero County, in an area of sand flats and dunes. It is nearly level in character, and the elevation is approximately 4,000 feet above sea level.

WARNER W. GARDNER,
Assistant Secretary of the Interior.

JANUARY 29, 1947.

[F. R. Doc. 47–1349; Filed, Feb. 12, 1947; 8:48 a. m.]